

# FREEDOM OF INFORMATION LAW REQUEST

Proposed Local Law, Chapter 51, Comparable Photography Uses and Boathouse Assessment Records

**To:** Rachel Guido, Village Clerk/Treasurer and Records Access Officer

**Email:** rguido@tuxedopark-ny.gov

**Agency:** Village of Tuxedo Park, 80 Lorillard Road, Tuxedo Park, New York 10987

**From:** David McFadden and Robin McFadden

**Date:** August 4, 2026

**Subject:** FOIL Request — Proposed photography/filming law and related records

Dear Records Access Officer:

Pursuant to the New York Freedom of Information Law, Public Officers Law Article 6, please email copies of the records reasonably described below. This request seeks existing records; it does not ask the Village to answer questions or create a new explanatory record.

## 1. Proposed local law and hearing records

Date range: January 1, 2025 through the date the search is completed.

1. The complete current proposed local law concerning photography, filming, photographic sessions, commercial gain, commercial use, location rental, temporary use, boathouses, accessory buildings, or standalone structures, together with every prior draft, revision, redline, attachment, and transmittal.
2. The resolution scheduling the public hearing; the official hearing notice; affidavits or other proof of publication and posting; and existing records showing the date, time, and physical or online location where the notice and proposed text were posted or made available.
3. Agendas, agenda packets, minutes, video or audio recordings, legislative findings, explanatory memoranda, reports, studies, factual summaries, referrals, environmental-review records, and written hearing procedures concerning the proposed law.
4. Existing records showing when the proposed law or any final version was delivered or transmitted to the Mayor or each Trustee, and any mayoral emergency certificate concerning the time the proposed law was required to remain in final form before a vote.

## 2. Origin, drafting and asserted factual basis

Date range: January 1, 2025 through the date the search is completed.

5. Complaints, letters, emails, text messages, social-media messages or posts, Instagram messages or screenshots, photographs, videos, memoranda, notes, and other submissions concerning photography or filming at a boathouse or other private property, or concerning the need for the proposed law.
6. Communications and attachments concerning the origin, initiation, purpose, drafting, scope, timing, enforcement, exceptions, grandfathering, or expected effect of the proposed law among or involving the Mayor, Trustees, Clerk, Village attorneys, Building Inspector, Police Department, Board of Assessors, consultants, residents, property owners, occupants, organizations, photographers, media or production companies, or other third parties.
7. Existing records identifying or discussing the conduct, property type, structure, person, complaint, or asserted harm that prompted the proposal, including records concerning alleged noise, traffic, parking,

fire, safety, privacy, drone use, neighborhood tranquility, residential character, code compliance, or property-value effects.

8. Records concerning alternatives considered, including permits, duration limits, crew or vehicle limits, parking requirements, insurance, notice, fees, annual frequency limits, public-road restrictions, enforcement under existing Code provisions, exemptions, or prospective treatment.

### **3. Chapter 51 legislative history and administration**

9. For January 1, 2010 through December 31, 2012: drafts, notices, minutes, memoranda, correspondence, findings, referrals, affidavits of publication or posting, and other legislative-history records concerning Local Law No. 1-2011 and the addition or intended meaning of the phrase “as a business or for commercial gain” in Chapter 51.
10. For April 20, 2011 through the date the search is completed: applications, written inquiries, requests, written permissions, approvals, conditions, denials, withdrawals, complaints, investigations, warnings, summonses, citations, stop-work directions, written dispositions, and settlement records under or expressly referencing Chapter 51.
11. For April 20, 2011 through the date the search is completed: written interpretations, opinions, determinations, instructions, policies, forms, checklists, and fee schedules concerning Chapter 51 or the terms “photographic sessions,” “commercial gain,” “business,” “privacy,” “safety,” “tranquility,” or the eight-hour limitation.

### **4. Comparable photography and filming records**

Date range: April 20, 2011 through the date the search is completed.

12. Applications, permissions, approvals, denials, complaints, investigations, warnings, citations, and written enforcement dispositions concerning still photography, filming, video production, drone photography or videography, advertising, magazine or editorial photography, architectural or design photography, book photography, promotional photography, real-estate-listing photography or videography, or paid location use on property within the Village.
13. Records of written decisions to investigate, permit, condition, warn, cite, refer, decline enforcement, or take no further action after Village officials learned that responsive photography or filming had occurred.
14. Written interpretations or determinations addressing whether Chapter 51 or another Village Code provision applies differently according to ownership, zoning district, residential or nonresidential use, lawful nonconforming-use status, building type, accessory-building status, separate-lot status, or certificate-of-occupancy status.
15. Drafted or adopted exceptions, exemptions, policies, or written interpretations concerning real-estate, architectural, design, editorial, book, news, nonprofit, Village-sponsored, aerial, or drone photography or videography, or photography or videography conducted at any particular category of property.

### **5. 61 Turtle Point Road boathouse and other boathouse records**

16. For January 1, 2025 through the date the search is completed: complaints, communications, photographs, screenshots, reports, notes, inspection records, and enforcement records concerning the boathouse property at 61 Turtle Point Road, tax-map parcel 103-1-24, owned of record by NYELICK Holdings, LLC and associated with David and Robin McFadden, or the single fashion still-photography session conducted there from approximately 10:00 a.m. to 4:00 p.m.
17. For April 20, 2011 through the date the search is completed: applications, permissions, complaints, investigations, warnings, citations, written enforcement dispositions, and written interpretations concerning photography, filming, paid location use, or events at any boathouse within the Village.

18. For January 1, 2025 through the date the search is completed: records identifying, mapping, classifying, or discussing all boathouses within the Village, regardless of ownership, tax-lot configuration, use classification, condition, or relationship to another structure, insofar as those records relate to the proposed law or its application.

## 6. Assessment records

Date range: January 1, 2017 through the date the search is completed. Property: 61 Turtle Point Road, Tuxedo Park, NY 10987; tax-map parcel 103-1-24; owner of record NYELICK Holdings, LLC; property class 312, Vacant Land with Improvements—Waterfront.

19. Assessment cards, property-record cards, field notes, inspection records, assessor photographs, valuation worksheets, land and improvement values, comparable properties or sales identified in the valuation file, assessment-change notices, and Board of Assessment Review determinations concerning 61 Turtle Point Road, tax-map parcel 103-1-24.
20. Public assessment cards and property-record cards for other boathouses on the Village's three lakes, including recorded land value, improvement value, classification, condition, and assessed value.
21. Communications and existing memoranda concerning reassessment of 61 Turtle Point Road following its historic renovation, including records identifying the methodology and comparables used.

## 7. Records maintained through non-Village systems

The requested records include agency records created, received, transmitted, forwarded, or stored through personal email accounts, personal cellular telephones, text-messaging or other messaging applications, and social-media accounts when those systems were used to conduct or discuss Village business. Please preserve and produce responsive attachments and screenshots with their associated communications.

## Search guidance

Likely custodians include the Mayor, Trustees, Village Clerk and Deputy Clerk, Village attorneys, Building Inspector or Code Enforcement personnel, Police Chief or designated police personnel, Village Assessor or Board of Assessors, and any consultant involved in drafting or reviewing the proposed law. Reasonably calculated search terms include: photograph, photography, photographic session, photo shoot, photoshoot, filming, film, video, drone, commercial gain, commercial use, location, rental, Instagram, boathouse, Chapter 51, Local Law 1-2011, McFadden, NYELICK, 61 Turtle Point, and 103-1-24. These terms are search aids and do not replace the record descriptions.

## Electronic production and rolling response

Please email responsive records in their existing electronic format where reasonably available, with attachments associated with their parent communications. Because historical records may not be organized chronologically or maintained in one location, please begin with the most recent responsive records and work backward. Please provide records on a rolling basis as they are located rather than withholding the entire production until the historical search is complete. This requested order of production does not limit the dates or scope of the request.

## Clarification

If any portion of this request is considered too broad or does not reasonably describe the records, please contact me by email or telephone so that I may clarify or reasonably narrow that portion. When appropriate,

please explain how the relevant records are filed, retrieved, or indexed. Please do not treat a question concerning one portion as a reason to delay processing clearly described portions.

## **Fees**

Electronic delivery is requested. If any charge is expected, please provide a written estimate before incurring a cost exceeding \$25. If records cannot be emailed because of volume, please advise what electronic delivery method is available and the actual reproduction cost.

## **Denials, redactions and records not found**

If access to any record or portion is denied, please identify the record or category withheld, state the specific statutory ground for the denial in writing, disclose all reasonably segregable nonexempt portions, and provide the name, mailing address, and email address of the person or body to whom an appeal should be directed. For any specifically requested record that the Village does not possess or cannot locate after diligent search, please provide the certification available under Public Officers Law §89(3)(a).

## **FOIL response**

Please respond within five business days by providing the records, denying access in writing, or acknowledging receipt in writing and stating a reasonable approximate date when the request will be granted or denied, as provided by Public Officers Law §89(3)(a).

Sincerely,

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